

BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS
STATE OF COLORADO

Case Numbers: 2023-1720, 2023-4217, 2023-4219, 2023-4221, 2023-4336

Board of Licensed Professional Counselor Examiners,
Petitioner,

v.

Jeffery Erickson, License No. LPC.0005625,
Respondent.

FINAL BOARD ORDER

This license discipline matter is before the Board of Licensed Professional Counselor Examiners to review the Initial Decision Upon Default issued by the Office of Administrative Courts' Administrative Law Judge, which was duly served upon the parties.¹ Thereafter, Respondent requested that the Initial Decision Upon Default be set aside. The Board as Petitioner filed a response. In accordance with §§ 12-245-226 and 24-4-105, C.R.S., the Board denies Respondent's request, adopts the Initial Decision Upon Default in its entirety, and revokes Respondent's license for violations of § 12-245-224(1)(i), (r), and (v), C.R.S.

Default may only be set aside when the party seeking relief shows by clear, strong, and satisfactory proof that failure to timely respond to the notice of charges was a result of excusable neglect and that a meritorious defense exists. *See, e.g., People v. Weisbard*, 35 P.3d 498 (Colo. 2000).

As reasons for setting aside the Initial Decision Upon Default, Respondent states that his previous attorney withdrew from representation, that he has raised funds for his current counsel to enter an appearance, and that he did not intend to disregard the pending matter. Respondent does not refute knowledge of the proceeding, the propriety of service of the notice, or accuracy of the mailing address

¹ The Initial Decision Upon Default is attached as Exhibit 1 and is incorporated as set forth herein.

used by the agency to serve Respondent. Based on its own review of the record, the Board concludes that service of the Notice was sufficient and proper. *See* § 24-4-105(2); Initial Decision Upon Default, Findings of Fact ¶¶1-5, Conclusion of Law ¶1.

Respondent made no filing or appearance while the matter was pending before the ALJ. Respondent having asserted no explanation and provided no proof for his failure to do so, despite multiple opportunities—as plainly stated in the Notice of Charges, Motion for Entry of Default, and Entry of Default—the Board finds no excusable neglect.

Respondent further states that he did not wish for the matter to proceed without proper defense and representation, but provides nothing to show a meritorious defense. Respondent has established no basis to set aside the default. *See Weisbard, supra*. Thus, after full consideration of all matters presented, the Board concludes default is proper. Accordingly, the Board adopts the Initial Decision Upon Default in its entirety, incorporating all findings of facts and conclusions of law.

IT IS THEREFORE ORDERED by the BOARD that Respondent's license to practice professional counseling in the state of Colorado is hereby REVOKED from the effective date of this Final Board Order. The Final Board Order is effective upon service to Respondent. Any party adversely affected or aggrieved by any agency action may commence an action for judicial review before the Court of Appeals within forty-nine (49) days after such action becomes effective. Reference sections 24-4-106(11) and 12-20-408, C.R.S.

DONE and **ORDERED** this 3rd day of November, 2023.

FOR THE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS

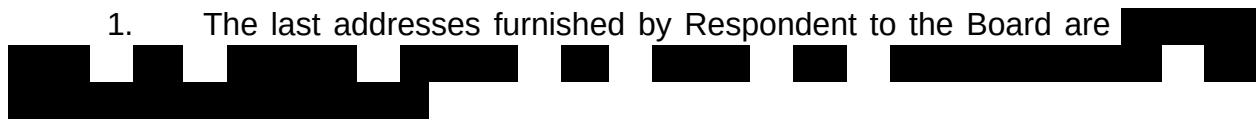
A handwritten signature in black ink, appearing to read "Sam Delp", is written over a light gray rectangular background.

SAM DELP
DIVISION DIRECTOR

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, 4th Floor, Denver, Colorado 80203	▲ COURT USE ONLY ▲
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioners, vs. JEFFERY BURTON ERICKSON, Licensed Professional Counselor, License No. LPC.0005625, Respondent.	
INITIAL DECISION UPON DEFAULT	

This case is a disciplinary proceeding before the State Board of Licensed Professional Counselor Examiners (the “Board” or “Petitioner”) involving the license to practice as a Licensed Clinical Social Worker of Jeffery Burton Erickson (“Respondent”). The Board was represented by Assistant Attorneys General Colette R. Gaenssle and Brianna S. Tancher. Respondent failed to answer the Notice of Charges. Based upon Respondent’s failure to file an Answer, an Entry of Default was issued on August 7, 2023. Respondent then had 10 (ten) days to show good cause why the Entry of Default should be set aside. § 24-4-105(2)(b), C.R.S. A motion to set aside the Entry of Default was not filed and this matter is ready for issuance of an Initial Decision.

FINDINGS OF FACT
Procedural Facts

1. The last addresses furnished by Respondent to the Board are 
2. Notice of the nature of this proceeding, the legal authority and jurisdiction under which it is held, and the matters of fact and law asserted were mailed to Respondent by first class mail to the address stated above on June 21, 2023.
3. The Board’s Motion for Entry of Default was mailed to Respondent by first class mail to the addresses stated above on July 24, 2023.
4. The Administrative Law Judge’s Entry of Default was mailed to Respondent by first class mail to the address stated above on August 7, 2023.

5. Respondent did not file a motion to set aside the Entry of Default.

Underlying Facts

1. Jeffery Burton Erickson ("Respondent") was licensed to practice as a licensed professional counselor ("LPC") within the State of Colorado on or about April 19, 2010, under license number LPC.0005625, and was so licensed at all times relevant to this matter.

2. The Board has jurisdiction over the person of Respondent, Respondent's license to practice professional counseling, and the subject matter herein.

3. On or about March 6, 2023, the Board received a complaint from R.W., husband of Respondent's client T.W.

4. R.W. alleges that Respondent had engaged in a romantic relationship with T.W. while she was Respondent's client.

5. This complaint is associated with DORA case no. 2023-1720.

6. R.W. and T.W.'s identities are known to Respondent.

7. On or around June 2, 2023, the Board received a complaint from Detective Adam Lawton of the Colorado Springs Police Department, alleging that Respondent engaged in an inappropriate relationship with client M.G.

8. Detective Lawton alleges that Respondent had sex with M.G. twice during therapeutic sessions under the guise of providing treatment for M.G.'s past trauma.

9. This complaint is associated with DORA case no. 2023-4219.

10. M.G.'s identity is known to Respondent.

11. On or around June 2, 2023, the Board received a complaint from J.H., client M.G.'s new mental-health provider.

12. J.H. alleges that Respondent emotionally manipulated and sexually assaulted client M.G, and fraudulently billed for time spent with M.G.

13. This complaint is associated with DORA case no. 2023-4221.

14. J.H.'s identity is known to Respondent.

15. On or around June 3, 2023, the Board received a complaint from client

M.G., alleging that Respondent engaged in a romantic relationship with M.G., engaged in emotional manipulation and isolation of M.G., sexually assaulted M.G. on two occasions, and billed insurance for time spent “sexting” M.G.

16. This complaint is associated with DORA case no. 2023-4217.

17. On or around June 8, 2023, the Board received a complaint from R.L., alleging Respondent shared with her that he had become attracted to a client and resultantly terminated therapy but began sending sexually inappropriate texts and emails to the client six months following termination.

18. This complaint is associated with DORA case no. 2023-4336.

19. R.L.’s identity is known to Respondent.

20. The Board reviewed these five (5) complaints, and associated documentation, on June 13, 2023, at an emergency meeting.

21. On June 14, 2023, Respondent’s license to practice professional counseling was summarily suspended by the Board pursuant to section 24-4-104, C.R.S.

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22. Beginning in or around 2022, through March 2023, Respondent engaged in an inappropriate relationship with client T.W.

23. T.W. became Respondent’s client in or around February 2022.

24. Respondent asserts that the counseling relationship was terminated with T.W. on or around October 24, 2022.

25. Respondent and T.W. exchanged sexual text messages during and after their therapeutic relationship.

26. In email correspondence between the two, T.W. confirms that she and Respondent were engaged in a relationship.

27. In email correspondence between the two, T.W. states that she “offered [Respondent] real love.”

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28. Case nos. 2023-4219, 2023-4217, and 2023-4221 were referred directly

to the Department of Regulatory Agencies' ("DORA") Office of Investigations ("OI") on June 5, 2023, pursuant to DORA policy regarding allegations of sexual assault.

29. Case no. 2023-4336 was referred to directly to OI on June 9, 2023, pursuant to DORA policy regarding allegations of sexual assault.

30. OI obtained Colorado Springs Police Department case report #2023-00012471, which included a witness statement from M.G.

31. OI obtained documentation of El Paso County Court case no. 2023CR2452.

32. Respondent began seeing client M.G. for mental health treatment in or around March 2022.

33. In or around May 2022, Respondent began suggesting that client M.G. text him outside of therapeutic sessions.

34. Respondent later suggested the texting be done through Signal, an encrypted messaging application.

35. Respondent sent client M.G. a flirtatious video of himself leaving the gym.

36. Respondent was communicating with client M.G. outside of therapeutic sessions nearly every day.

37. On or about October 10, 2022, Respondent and client M.G. exchanged explicit sexual material and messages for the first time.

38. Respondent and M.G. continued to exchange sexually explicit messages and materials.

39. Respondent told M.G. that this exchange of sexual content was good for her to relearn her neuropathways.

40. On or around November 7, 2022, Respondent kissed client M.G. while on a hike together.

41. In or around mid-November 2022, Respondent had sexual intercourse with client M.G. in his office.

42. When M.G. expressed remorse regarding the sexual intercourse, Respondent told M.G. that she had effectively fired him, and that they would continue working through their trauma as "friends and soulmates."

43. In or around mid-February 2023, Respondent again had sexual intercourse with client M.G. in his office.

44. M.G. asserts that on multiple occasions, Respondent billed her insurance for “sexting sessions” that the two had.

45. Respondent fraudulently billed insurance for interactions wholly unrelated to therapeutic treatment.

46. On or around June 2, 2023, Respondent was arrested and charged with two counts of Sexual Assault on a Client by a Psychotherapist – Therapeutic Deception, section 18-3-405.5(1)(a)(II), C.R.S., as a result of the law enforcement investigation into his relationship with client M.G.

CONCLUSIONS OF LAW

1. Respondent received timely notice of the time, place, and nature of this hearing; of all matters of fact and law asserted; and all matters required by § 24-4-105(2)(a), C.R.S., in the manner required by that section.

2. The Board has jurisdiction over Respondent and over his license to practice as licensed professional counselor pursuant to the provisions of the Mental Health Practice Act, §§ 12-245-101, C.R.S.

3. Respondent is subject to discipline pursuant to § 12-245-224(1)(i), C.R.S. because he engaged in a romantic dual relationship with client T.W. and engaged in a romantic and sexual dual relationship with client M.G., in violation of § 12-245-224(1)(i), C.R.S.

4. Respondent is subject to discipline pursuant to § 12-245-224(1)(r), C.R.S. because he engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in section 18-3-401, C.R.S. with a client during the period of time in which a therapeutic relationship exists or for up to two years after the period of which a therapeutic relationship exists, in or around both November 2022 and February 2023, in violation of § 12-245-224(1)(r), C.R.S.

5. Respondent is subject to discipline pursuant to § 12-245-224(1)(v), C.R.S. because Respondent billed clients’ insurance for sexual encounters, in violation of § 12-245-224(1)(v), C.R.S.

INITIAL DECISION

When the Board has proven that a licensee has violated the licensing law, it may deny, revoke, or suspend the licensee’s licenses to practice as a licensed professional counselor. § 12-245-225, C.R.S.

The Board seeks an order revoking Respondent's license to practice as licensed professional counselor in the State of Colorado.

Respondent failed to answer the Notice of Charges. There is no information before the Administrative Law Judge indicating that some sanction other than revocation of Respondent's licenses to practice as a licensed professional counselor is appropriate in this case. Respondent's failure to appear in this proceeding demonstrates a lack of interest in maintaining his license to practice as a licensed professional counselor. It is therefore the Initial Decision of the Administrative Law Judge that Respondent's license to practice as a licensed professional counselor is hereby revoked.

DONE AND SIGNED August 18, 2023.

/s/ Hollyce Farrell
HOLLYCE H. FARRELL
Supervising Administrative Law Judge